

25NNCV02334 25NNCV02334

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-19
Motion: MOTION FOR LEAVE TO FILE FOURTH AMENDED COMPLAINT
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Case Number: 25NNCV02334 Hearing Date: August 19, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

CALVIN
SALMON,

Plaintiff(s),

vs.

CVS
PHARMACY, INC., et al.,

Defendant(s).

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CASE NO.: 25NNCV02334

[TENTATIVE]

ORDER RE: MOTION FOR LEAVE TO FILE FOURTH AMENDED COMPLAINT

Dept.

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8:30

a.m.

August

19, 2026

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I.

INTRODUCTION

On April 4, 2025, plaintiff Calvin

Salmon ("Plaintiff") filed this action against defendant Garfield Beach CVS,

LLC ("Garfield Beach", erroneously sued and served as "CVS Pharmacy, Inc.") and

Sedgwick Claims Management Services, Inc. ("Sedgwick") (collectively, with

Garfield Beach, "Defendants").

Plaintiff filed a First Amended

Complaint on May 29, 2025, before Defendants filed a responsive pleading. He

attempted to file another amended complaint on August 5, 2025, but the pleading was rejected. The parties then stipulated to Plaintiff's filing of a Second Amended Complaint on September 10, 2025. Defendants filed an answer to the Second Amended Complaint on September 19, 2025, then removed the case to federal court on April 30, 2026.

The case was remanded from federal court on June 12, 2026, and less than two weeks after, Plaintiff filed a motion for leave to file a Third Amended Complaint. Defendants did not oppose this motion and on July 22, 2026, the Court granted the motion. Plaintiff filed the Third Amended Complaint the same day.

One day after filing the Third Amended Complaint, on July 23, 2026, Plaintiff filed this motion seeking leave to file a Fourth Amended Complaint. The proposed Fourth Amended Complaint adds a cause of action for negligent retention and supervision against Garfield Beach and makes "technical corrections" including "statutory citations and record quotations." (Motion, p. 2.)

Garfield Beach filed an opposition brief on August 5, 2026.

Plaintiff filed a reply brief on August 10, 2026.

II.

LEGAL

STANDARD

Motions for leave to amend the pleadings are directed to the sound discretion of the judge. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) The court's discretion will usually be exercised liberally to permit amendment of the pleadings. (See *Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981)

III.

DISCUSSION

Plaintiff seeks leave to file the Fourth Amended Complaint which adds a cause of action for negligent retention and supervision. Plaintiff alleges Garfield Beach negligently retained and failed to supervise Store Manager in Training, Selin Gheyvandian, who accused Plaintiff of using counterfeit currency to purchase gift cards on April 20, 2023, and made other statements to the police that were allegedly false.

Plaintiff argues he recently obtained copies of a signed plea agreement and judgment from the United States District Court for the Central District of California showing that in 2014, Ms. Gheyvandian pleaded guilty to two felony counts and admitted to presenting two checks on an overdrawn bank account as purported payments on a credit card, which she subsequently used to make retail purchases. (Motion, Proposed Fourth Amended Complaint, ¶ 121.) Plaintiff alleges Garfield Beach hired Ms. Gheyvandian for a position whose duties required sound, honest, and reliable judgment concerning the integrity of retail payment transactions and the financial honesty of customers, and Ms. Gheyvandian was unfit to perform those particular duties due to her past history of executing fraudulent transactions; in addition, Defendant allegedly failed to supervise Ms. Gheyvandian by allowing her to speak to law enforcement without reviewing her accusations, complying with its prescribed protocol, and conducting any internal investigation. (Id., ¶¶ 123-126.) Plaintiff further alleges that Ms. Gheyvandian's federal conviction was reportable on a consumer background report until November 2021 and "both her hire and her promotion" fell within the period in which any lawful background screening would have disclosed the conviction. (Id., ¶ 124.)

Garfield Beach opposes Plaintiff's motion and argues that Plaintiff unreasonably delayed in seeking leave to file this amended complaint given the public nature of Ms. Gheyvandian's criminal record. Garfield Beach claims that this late amended would cause "added costs of preparation" and an "increased burden of discovery" due to a new field of factual dispute involving Defendant's hiring, screening, and retention practices, the criminal history of Ms. Gheyvandian, and its "consumer-reporting framework." (Opp., p. 11.) Garfield Beach also protests that Plaintiff already

tried to obtain Ms. Gheyvandian's personnel file, disciplinary history, and records of complaints or investigations, but that it properly objected to producing these materials because they were not relevant to the operative pleading. Garfield Beach contends that allowing this discovery would invite renewed motion practice because those objections would no longer be valid and the information sought would then become discoverable.

None of Garfield Beach's arguments are persuasive. First, delay alone is insufficient to deny a motion for leave to amend and trial is scheduled for February 22, 2027, leaving plenty of time for discovery. Second, Garfield Beach's claims that there is an increased burden of discovery is unquantified and unsubstantiated by evidence; in fact, if Garfield Beach recognizes that certain materials regarding Ms. Gheyvandian's employment are now discoverable due to the amendments, that should obviate the need for motion practice. Furthermore, the discovery would only involve information that is already in Garfield Beach's knowledge and possession. Therefore, no prejudice will result from allowing the filing of the Fourth Amended Complaint.

IV.

CONCLUSION

Plaintiff's motion is GRANTED and Plaintiff is ordered to file the proposed Fourth Amended Complaint within 5 days of the date of this Order.

Dated
this 19th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a

submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.